
Journal

1980 CLC 550

Court

SINDH HIGH COURT

Date

1970-12-21

Appeal No.

SECOND APPEAL NO. 143 OF 1968

Judge

MIR KHUDA BAKHSH MARRI

Parties

ABDULLAH RASHID (APPELLANT) VERSUS ZARINA RASHID RESPONDENT

Lawyers

H. A. RIZVI FOR APPELLANT. ALI AHMED SHAIKH FOR RESPONDENT.

Statutes

WEST PAKISTAN FAMILY COURTS ACT (XXXV OF 1964) - S. 14 CIVIL PROCEDURE CODE (V OF 1908) - S. 100

Judgment

Judgment .

This second Appeal filed under section 14 of Family Courts Act, 1964, purports to set aside a judgment and decree of an Additional District Judge, Karachi dated the 22nd of January 1968. 1
2. A short background of this case is, that the present appellant is a Dutch National, doing business as an Architect at Karachi since good many years. On his conversion to Islam, he changed his name from Richard to Abdullah Rashid. Respondent Mst. Zarina Rashid filed a plaint before 3rd Civil. Judge First Class, Karachi sitting as Family Court, for recovery of Rs. 10,000 as prompt dower against the appellant, alleging that she was legally wedded wife of the appellant, contending that marriage between the parties had taken place on 4-1-1966 at Rahim Yar Khan, under Muslim Family Laws Ordinance, 1961, Nikah performed by one Kazi Niaz Ahmed, a registered Kazi of Ward No. 6 and duly registered with the Chairman, Union Council. She further alleged that Rs. 1,00,000 (one lac) was settled as Haq Mehar of which Rs. 10,000 was agreed upon as prompt dower, marriage was consummated and the couple lived together for sometime at Rahim Yar Khan and later on at Karachi where she demanded her prompt dower of Rs. 10,000 which the appellant refused to pay. The appellant in his written statement admitted having affairs with the respondent but denied to have entered into any marital obligations with her. He admitted going to Rahim Yar Khan, and further admitted his signature on Nikahnama and also certain letters written by him to the respondent, but took the plea that being a foreigner not knowing Urdu he was forced to sign a blank document not knowing its contents, thus pleaded ignorance and denied marriage obligations and alleged a conspiracy against him for extortion of huge sums by the respondent and her relatives.

3. The learned Civil Judge, framed three issues, gave full opportunity to the parties to adduce documentary and other evidence, and came to the conclusion, that a valid marriage took place between the parties at Rahim Yar Khan, and further held that the respondent was entitled to recover Rs. 10,000 as prompt dower and gave a decree to this effect by his judgment dated the 24th of August 1967.

4. The present appellant filed an appeal against the above judgment of Family Court before the learned Additional District Judge, Karachi, which was dismissed on the 22nd of January 1968 by the First Appellate Court. This Second Appeal challenges the judgment of the learned Additional District Judge Karachi, as well as of Family Court, on the main grounds, that the evidence of the appellant was not appreciated, no chance of cross-examining the witnesses of the respondent was permitted, lower Appellate Court did not apply its mind while deciding the appeal and lastly that after consummation of marriage no decree could be passed for the recovery of prompt dower.

5. At the time of hearing of this appeal, the learned counsel for the respondent raised the preliminary objection that there is no provision in Family Courts Act, 1964 for a second appeal and it was vehemently contended that the appellant having exhausted his first and only right of appeal before the learned Additional District Judge, Karachi, the present appeal may be dismissed as not maintainable. He referred me to section 14 of Family Courts Act, 1964, and submitted that there is only one appeal provided under the scheme of the Act of 1964, and the appellant exhausted that right as he appealed to the Additional District Judge, Karachi, against the Judgment of the Family Court, his present appeal is not 'maintainable. Section 14 of Family Courts Act is as under, "(1) Notwithstanding anything provided in any other law for the time being in force, a decision given or a decree passed by a Family Court shall be appealable- .

(a) to the High Court, where the Family Court is presided over by a District Judge, an Additional

District Judge or a person notified by Government to be of the rank and status of a District Judge or an Additional District Judge ; and .

(b) to the District Court, in any other case.

(2) No appeal shall lie from a decree passed by a Family Court- (a) for dissolution of marriage, except in the case of dissolution for reasons specified in clause (d) of item (viii) of section 2 of the ,Dissolution of Muslim Marriages Act, 1959; for dower not exceeding rupees one thousand;' (c) for maintenance of rupees twenty-five or less per month/' The counsel for the respondent relied on a judgment of this Court reported as Abdul Hakeem v. Mst. Abida Begum wherein his Lordship Mr. Justice Qadeeruddin (as he then was) held : * "It will not be correct to interpret subsection (1) of section 14 in such a manner as to provide first appeals as well as second appeals at random, without the use of such language as to distinguish between the two. By way of analogy see section 96 of the Civil Procedure Code which provides for appeals from the original decrees and section 100 of the C. P. C. which provides separately for appeals from Appellate decrees. The language draws suitable distinction between first and second appeals. One anomaly which will arise from interpreting clause (a) of subsection (1) of section 14 to include second appeals will be that there will be two appeals in those cases which may be decided by Family Courts presided over by other officers than District Judges or Additional District Judges and other officers of that rank and only one appeal from those Family Courts which will be presided over by District Judges, Additional District Judges and officers of that rank.

To my mind there is no justification for coming to the conclusion that clause (a) of subsection (1) of section 14 of the "West Pakistan Family Courts Acts, makes a provision for second Appeals." The learned counsel for the appellant when called upon to reply to above legal objection, had no worthwhile answer to make, except that by virtue of section 12 of West Pakistan Family Courts (Amendment) Ordinance, 1966, section 14 of Family Courts Act, 1964 has been recasted and power of appeal has been conferred on District Judges, in case tried by a Family Court presided by a person other than a District or Additional District Judge. He contends that in the present case III Civil Judge .First Class, Karachi has tried the case as Family Court Judge, hence, the appellant has right to appeal to the District Judge or Additional District Judge which he did. He further contended that clause (a) of subsection (1) of section 14 of Family Courts Act, 1964 as amended provides further right to appeal to this Court. In the alternative, the learned counsel contended that as at the time of filing the suit by the respondent section 14 of Family Courts Act, 1964 stood unamended with the result there was a direct appeal to the High Court, therefore, his first appeal before the learned Additional District Judge, Karachi, may be treated as incompetent, the present appeal therefore must be treated as first appeal. When it was pointed out, that if his this proposition is accepted, how he would be able to bring this appeal filed on 6-3-1968, against a judgment of Family Court dated 24-8-1967, within 30 days prescribed period of limitation, he submitted that the time consumed in pursuing the first appeal is condonable on the ground that on bona fide mistake remedy was sought in the wrong forum of Additional District Judge. The contentions of the learned counsel for the respondent, though not without interest, I am afraid are wholly devoid of any substance.

6. Now it cannot be disputed that West Pakistan Family Courts Act, 1964, was made applicable in Karachi District by a notification dated 2-11-1966. At this time section 14 stood on statute book as under : "Notwithstanding anything provided in any other law for the time being in 'force/a decision or decree passed by a Family Court shall be appealable to the High Court only." This - section was radically amended later on by West Pakistan Family Courts (Amendment) Ordinance, 1966, which came into force on 4-4-1966, where from, District or Additional District Judge was for the first time empowered to hear appeal against orders of Family Court presided by an officer other than a District or Additional District Judge; and where District or Additional

District Judge presided and tried a family dispute as original Court, appeal lies to the High Court.

. 7. In view of this legal position, by no stretch of imagination, it can] be said that a party has in any circumstance right of two appeals, no matter at the time of institution of the suit appeal was provided before Court of District or Additional District Judge, yet he could have no more thanU one right of appeal. Besides, the present appellant, cannot escape the clear bar of limitation against him to persue this appeal. Lastly the grounds of appeal, are based only on misappreciation or non-appreciation of evidence, now this is settled proposition that at the time of second appeal, and even g though this appeal being incompetent, question of fact and appreciation or otherwise of evidence cannot be allowed to be raised.

8. Being in respectful agreement with judgment of my learned brother Mr. Justice Qadeeruddin (as he then was) reported as Abdul Hakeenv. Mst. Abida Begum referred above, and further reasons given above, I hold this appeal as unmaintainable, therefore, dismiss the same with costs. Any stay order in favour of the appellant stands cancelled.

Appeal dismissed.

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